



CHAPTER xcv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Highland Railway. [3rd August 1910.] A.D. 1910.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the Schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Highland Railway Order Confirmation Act 1910. Short title.

A.D. 1910.

SCHEDULE.

HIGHLAND RAILWAY.

Provisional Order to extend the time for the completion of certain Railways authorised by the Highland Railway (Additional Powers) Act 1897 and for other purposes.

WHEREAS the Highland Railway Company (herein - after called "the Company") were authorised by the Highland Railway (Additional Powers) Act 1897 (herein-after referred to as "the Act of 1897") to construct certain railways therein described:

And whereas it is expedient that the period limited by the Act of 1897 as extended by the Highland Railway Order 1901 and the Highland Railway Act 1905 for the completion of the said railways by the Act of 1897 authorised should be further extended:

And whereas it is expedient that the other powers in this Order contained should be conferred on the Company:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title.

1. This Order may be cited as the Highland Railway Order 1910.

Incorporation of Act.

2. Part II. (relating to extension of time) of the Railways Clauses Act 1863 is incorporated with and forms part of this Order.

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the Act partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction In this Order the expression—

"The Company" means the Highland Railway Company;

"The Act of 1897" means the Highland Railway (Additional Powers) Act 1897;

"The Order of 1901" means the Highland Railway Order 1901; A.D. 1910.

"The Act of 1905" means the Highland Railway Act 1905.

4. The time limited by the Act of 1897 as extended by the Order of 1901 and the Act of 1905 for the completion of Railways Nos. 1 2 and 3 authorised by section 4 of the Act of 1897 is hereby further extended for a period of five years from the sixth day of August one thousand nine hundred and ten and on the expiration of that period those powers shall cease except for so much of those railways as shall then have been completed. Extension of time for completion of railways authorised by Act of 1897.

5. Notwithstanding anything contained in the Companies Clauses Consolidation (Scotland) Act 1845 and section 17 (Power to close transfer books at certain periods) of the Highland Railway Act 1865 the directors of the Company may close the registers of transfers of shares and stock for any period not exceeding twenty-eight days previous to each ordinary and extraordinary meeting of the Company and may close the registers of transfers of debenture stock for any period not exceeding twenty-eight days prior to each date at which the interest thereon shall be payable. Period for closing registers of transfers.

6. Section 4 (Amendment of section 17 of Highland Railway Act 1865) of the Highland and Invergarry and Fort Augustus Railway Companies Act 1903 is hereby repealed. Repeal of section 4 of Highland and Invergarry and Fort Augustus Railway Companies Act 1903.

7. The Company may apply to the purposes of this Order to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares or mortgage by virtue of any Acts or Orders relating to the Company and which may not be required for the purposes to which they are by any such Acts or Orders made specially applicable. Power to apply corporate funds to purposes of Order.

8. Nothing in this Order contained shall exempt the Company or their railway from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or Provision as to general Railway Acts.

[Ch. xcv.] *Highland Railway Order Confirmation* [10 EDW. 7 &
Act, 1910. 1 GEO. 5.]

A.D. 1910. of the rates for small parcels authorised to be taken by the
Company.

Expenses of
Order.

9. All costs charges and expenses of and incident to the
preparing for obtaining and confirming of this Order or other-
wise in relation thereto shall be paid by the Company.

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